

Smt. Indumathi Alias Rajeshwari W/O ... vs Shri Prabhu S/O Basavaraj ... on 15 March, 2023

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CP No. 100212 of 2022

IN THE HIGH COURT OF KARNATAKA, DHARWAD
BENCH

DATED THIS THE 15TH DAY OF MARCH, 2023

BEFORE
THE HON'BLE MRS JUSTICE K.S.HEMALEKHA

CIVIL PETITION NO. 100212 OF 2022

BETWEEN:

SMT. INDUMATHI @ RAJESHWARI W/O PRABHU
SANNAPPANAVAR
AGE. 27 YEARS, OCC: HOUSEHOLD WORK,
R/O. HAVERI,
PREVIOUSLY R/AT: C/O. NAGAPPA GANGADER
YADRANVI,
#18, 5TH CROSS, KRISHNAPPA GARDEN, D.R.C.
POST, TAWARAKERI, BENGALURU-560029
NOW R/AT: C/O. DRAKSHYANI W/O. NAGAPPA
YADRAMI

Digitally
signed by
ANNAPURNA

CHINNAPPA
ANNAPURNA DANDAGAL
CHINNAPPA

Location:

DANDAGAL

HIGH
COURT OF
KARNATAKA

DHARWAD

#62-1, 1ST FLOOR, THAVARKERE MAIN ROAD,

BENGALURU-560002

MOB- 97317-29169 / 90080-94862

...PETITIONER

(BY SRI. NEEL PATEL ADV. FOR
SRI GOURISHANKAR MOT, ADVOCATE)

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AND:

SHRI PRABHU S/O BASAVARAJ SANNAPPANAVAR
AGE. 31 YEARS, OCC. COOLIE AND
AGRICULTURE,
R/AT HEBSUR, TQ. HUBBALLI, DIST: DHARWAD,
NOW R/AT: #26/2, 3RD CROSS, NEAR FCI MAIN
GATE,
K.R. PURAM, DOORVANINAGAR,
BENGALURU-560016
MOB- 97394-35950

...RESPONDENT

(RESPONDENT SERVED)

CIVIL PETITION FILED U/SEC.24 OF CPC, PRAYING
TO TRANSFER THE MATRIMONIAL CASE NO. 226 OF 2020
AS PENDING BEFORE THE HONBLE I ADDITIONAL
PRINCIPAL JUDGE, FAMILY COURT AT HUBBALLI TO THE
HONBLE PRINCIPAL FAMILY COURT, BANGALORE WITH
THE DIRECTION TO DISPOSE OFF THE CASE ON MERITS
IN ACCORDANCE WITH LAW, IN THE INTEREST OF
JUSTICE AND EQUITY.

THIS PETITION, COMING ON FOR ADMISSION, THIS
DAY, THE COURT MADE THE FOLLOWING:

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ORDER

Though the respondent is served with notice, he has chosen to remain absent.

2. The Petitioner-wife is before this Court seeking to withdraw M.C.No.226/2020 pending on the file of the I Additional Principal Judge, Family Court, Hubballi and transfer to the Principal Family Court, Bangalore.

3. It is not in dispute that the petitioner is the legally wedded wife of respondent and marriage was solemnized on 11.05.2014 at Hubballi as per the Hindu religion and customs and traditions. Due to un-cordial relation between the petitioner and the respondent, they are living separately. The husband has filed M.C.No.4173/2019 before the Family Court, Bangalore seeking for decree for divorce under Section 13(1)i(a)&(ib) of the Hindu Marriage Act, 1955 and the subsequent MC petition for divorce under Section 13(1)1(a)&1(b) of the Hindu Marriage Act, 1955 before the Principal Judge, Family Court, Hubballi in MC No.226/2020. The petitioner - wife was placed ex-parte in MC No.226/2020 and the petition filed by husband before the Hubballi Court in MC No.226/2020 was allowed and marriage dated 11.05.2014 was dissolved. Assailing the order dated 01.04.2021 dissolving the marriage, the petitioner had filed MFA No.100690/2021 before this Court. This Court on re- consideration of the material on record remanded the matter for fresh consideration in accordance with law and the matter is pending consideration before the Family Court, Hubballi. It is stated that petition filed by husband in MC No.4173/2019 before the Family Court, Bangalore, has been dismissed for non prosecution.

4. Heard the learned counsel for petitioner.

5. Learned counsel for the petitioner would contend that the petitioner is residing at Bangalore and the address shown in the cause title of MC No.226/2020 pending on the file of Family Court, Hubballi, is at Bangalore. It is not in dispute that earlier petition MC No.226/2020 was disposed of and the marriage between the parties were dissolved. Against which, the petitioner - wife has preferred miscellaneous first appeal before this Court and this Court allowed and remanded the matter to reconsider the same to the Family Court as the petitioner was placed ex-parte.

6. It is also stated that respondent had earlier filed MC No.4173/2019 before the Family Court, Bangalore and the same was dismissed for non-prosecution.

7. Learned counsel would also contend that since the petitioner wife is residing at Bangalore, the convenience of the wife takes a paramount concern while transferring the petition from one place to another and sought to allow the petition.

8. The material on record would depict that the petitioner is residing in Bangalore in her parental house. It is also not in dispute that earlier MC petition filed by the husband was at Bangalore and same has been dismissed for default and in the earlier round of litigation, petitioner was placed ex-parte in MC No.226/2020 on the file of family Court Hubballi. In view of setting aside of the exparte order, petitioner was provided with an opportunity to contest MC No.226/2020. It is contended that petitioner has no independent source of income and she is living with her aged parents who are not financially strong and it is very difficult to travel to Hubballi from Bengaluru and on earlier occasion due to the petitioner's absence in MC No.226/2020 on the file of family Court Hubballi has already suffered an exparte order. In the light of this, it is also to be borne in

mind that the convenience of the wife is to be considered as compared to the inconvenience that could be caused to the husband.

9. Section 24 of the CPC enumerates this Court to exercise power to transfer the petition, suit, appeal or other proceedings where justice demands. In transfer petition, where the transfer is sought by the wife, the convenience of wife needs to be considered as held by Hon'ble Apex Court in catena of judgment in line. The Apex Court in case of N.C.V. AISHWARYA VS. A.S.SARAVANA KARTHIK SHA in civil appeal No.4894 of 2022 has held that at para No.9 which reads as under:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

2. In the light of this petitioner has made out a case to transfer petition from Hubballi to Bangalore. Hence, the petition filed by the wife needs to be allowed. Accordingly, this Court pass the following:

ORDER

a) The Civil petition is allowed.

b) The M.C.No.226/2020 pending on the file of the I Additional Civil Judge, Family Court, Hubballi, is withdrawn and transferred to the Family Court, Bangalore.

(Sd/-) JUDGE VMB